

HOUSE BILL No. 1251

DIGEST OF INTRODUCED BILL

Citations Affected: IC 16-18-2-150; IC 16-31.

Synopsis: Emergency ambulance services. Specifies that emergency medical services, including emergency ambulance services, are essential services in Indiana. Specifies that the provision of emergency medical services is an essential purpose of political subdivisions. Requires the county commissioners of each county to: (1) identify areas that are unserved by emergency ambulance services; and (2) provide emergency ambulance services to those areas by establishing a county emergency ambulance service, contracting with a public, private, or nonprofit provider of emergency ambulance services, or by any other available means.

Effective: July 1, 2026.

O'Brien, Bartels

January 5, 2026, read first time and referred to Committee on Veterans Affairs and Public Safety.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1251

A BILL FOR AN ACT to amend the Indiana Code concerning health.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 16-18-2-150, AS AMENDED BY P.L.197-2011,
2 SECTION 55, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 150. (a) "Governing body", for purposes of
4 IC 16-22-7, has the meaning set forth in IC 16-22-7-2.

5 **(b) "Governing body", for purposes of IC 16-31-5, has the**
6 **meaning set forth in IC 16-31-5-0.5.**

7 ~~(b)~~ **(c)** "Governing body", for purposes of IC 16-41-22, has the
8 meaning set forth in IC 16-41-22-3.

9 SECTION 2. IC 16-31-1-1 IS AMENDED TO READ AS
10 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) The general
11 assembly declares that ~~the provision of~~ emergency medical services,
12 **including emergency ambulance services, are essential services.**
13 **The provision of emergency medical services** is a matter of vital
14 concern affecting the public health, safety, and welfare of the people of
15 Indiana.

16 (b) It is the purpose of this article:

17 (1) to promote the establishment and maintenance of an effective



1 system of emergency medical service, including the necessary
 2 equipment, personnel, and facilities to ensure that all emergency
 3 patients receive prompt and adequate medical care throughout the
 4 range of emergency conditions encountered;

5 (2) that the emergency medical services commission established
 6 under IC 16-31-2 shall cooperate with other agencies empowered
 7 to license persons engaged in the delivery of health care so as to
 8 coordinate the efforts of the commission and other agencies; and

9 (3) to establish standards and requirements for the furnishing of
 10 emergency medical services by persons not licensed or regulated
 11 by other appropriate agencies.

12 SECTION 3. IC 16-31-1-2 IS AMENDED TO READ AS
 13 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. ~~The provision of~~
 14 Emergency medical ~~service services~~, **including emergency**
 15 **ambulance services, are essential services. The provision of**
 16 **emergency medical services** is an essential purpose of the political
 17 subdivisions of the state.

18 SECTION 4. IC 16-31-5-0.5 IS ADDED TO THE INDIANA CODE
 19 AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
 20 1, 2026]: Sec. 0.5. As used in this chapter, "governing body" means
 21 the following:

22 (1) The board of county commissioners, for a county not
 23 subject to IC 36-2-3.5 or IC 36-3-1.

24 (2) The county council, for a county subject to IC 36-2-3.5.

25 (3) The city-county council, for a consolidated city or county
 26 having a consolidated city.

27 (4) The common council, for a city other than a consolidated
 28 city.

29 (5) The town council, for a town.

30 (6) The township executive with the approval of the township
 31 board, for a township.

32 SECTION 5. IC 16-31-5-1, AS AMENDED BY P.L.170-2022,
 33 SECTION 30, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 34 JULY 1, 2026]: Sec. 1. **Except as provided in section 1.5 of this**
 35 **chapter**, the governing body of a city, town, township, or county by the
 36 governing body's action or in any combination may do the following:

37 (1) Establish, operate, and maintain emergency medical services.

38 (2) Levy taxes under and limited by IC 6-3.6 and expend
 39 appropriated funds of the political subdivision to pay the costs
 40 and expenses of establishing, operating, maintaining, or
 41 contracting for emergency medical services.

42 (3) Except as provided in section 2 of this chapter, authorize,



franchise, or contract for emergency medical services, **including entering into interlocal cooperation agreements under IC 36-1-7.** However:

(A) a county may not provide, authorize, or contract for emergency medical services within the limits of any city without the consent of the city; and

(B) a city or town may not provide, authorize, franchise, or contract for emergency medical services outside the limits of the city or town without the approval of the governing body of the area to be served.

(4) Apply for, receive, and accept gifts, bequests, grants-in-aid, state, federal, and local aid, and other forms of financial assistance for the support of emergency medical services.

(5) Establish and provide for the collection of reasonable fees for ambulance services the governing body provides under this chapter.

(6) Pay the fees or dues for individual or group membership in any regularly organized volunteer emergency medical services association on their own behalf or on behalf of the emergency medical services personnel serving that unit of government.

SECTION 6. IC 16-31-5-1.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 1.5. (a) Subject to section 1(3) of this chapter, a county governing body shall:**

(1) identify areas of the county, if any, that are unserved by at least one (1) public, private, or nonprofit provider of emergency ambulance services; and

(2) provide emergency ambulance services to the unserved areas by any of the means set forth in section 1 of this chapter, including:

(A) establishing a county emergency ambulance service;

(B) contracting with a public, private, or nonprofit provider of emergency ambulance services; or

(C) entering into interlocal cooperation agreements under IC 36-1-7 with one (1) or more political subdivisions.

(b) Nothing in this section requires the county to appropriate county revenue to provide emergency ambulance services, if emergency ambulance services can be provided by other means.

